§ 9.5 *Executive orders, covering naval reservations*—Continued

Designation	State or Territory	Easement or other interest	No.	Documents affecting	
				Date	Citation
Cape May—Air Station	New Jersey		Proc. 1504	Dec. 2, 1918	40 Stat. 1912.
Lake Denmark—Ammunition Depot	New Jersey		Proc. 1472	Aug. 7, 1918	40 Stat. 1820.
Midway Islands—Reservation	Pacific		E.O. 199-A	Jan. 20, 1903	
Wake Island—Reservation	Pacific		E.O. 6935	Dec. 29, 1934	
Fort Mifflin Ammunition Depot	Pennsylvania		Proc. 1472	Aug. 7, 1918	40 Stat. 1820.
Philadelphia Depot of Supplies	Pennsylvania		Proc. 1472	Aug. 7, 1918	40 Stat. 1820.
Baguio—Reservation	Philippine Islands		E.O. 1254	Oct. 10, 1910	
			E.O. 5139	June 19, 1929	
Canaco-Sangley Point—Reservation	Philippine Islands		E.O. 5139	June 19, 1929	
Cape Bojesador	Philippine Islands		E.O. 5139	June 19, 1929	
Romblon	Philippine Islands		E.O. 5139	June 19, 1929	
San Fernando	Philippine Islands		E.O. 5139	June 19, 1929	
Baguio	Philippine Islands		E.O. 5139	June 19, 1929	
Abuyog	Philippine Islands		E.O. 5139	June 19, 1929	
Cuyo	Philippine Islands		E.O. 5139	June 19, 1929	
Cavite—Navy Yard	Philippine Islands		E. O. 5139	June 19, 1929	
Cebu—Coal Depot	Philippine Islands		E. O.	June 19, 1903	
			E. O. 1215	June 17, 1910	
Olongapo—Naval Station	Philippine Islands		E. O.	Nov. 26, 1902	
			E. O. 1026	Feb. 13, 1909	
Culebra—Reservation	Puerto Rico	Subject to private rights	E. O.	Dec. 17, 1901	
San Geronimo—Reservation	Puerto Rico		Proc. 1970	Sept. 15, 1931	47 Stat. 2482.
San Juan—Air Station	Puerto Rico		E. O. 8678	Feb. 11, 1941	6 F. R. 935.
Newport (Gould Island) Torpedo Station	Rhode Island		Proc. 1472	Aug. 7, 1918	40 Stat. 1820.
Tutuila—Naval Station	Samoa		E. O.	Feb. 19, 1900	
Parris Island Marine Barracks	South Carolina		Proc. 1472	Aug. 7, 1918	40 Stat. 1820.
Vernal—Oil Shale Reserve	Utah		E. O.	Dec. 6, 1916	
			E. O.	Nov. 17, 1924	
Dahlgren—Proving Ground	Virginia		Proc. 1458	June 10, 1918	40 Stat. 1790.
			Proc. 1494	Nov. 4, 1918	40 Stat. 1885.
Norfolk—Fuel Depot	Virginia		E. O. 4671	June 20, 1927	
			E. O. 4716	Sept. 12, 1927	
			E. O. 4814	Feb. 24, 1928	
Norfolk—Operating Base	Virginia		Proc. 1379	June 28, 1917	40 Stat. 1674.
Quantico—Marine Corps Base	Virginia		E.O. 3179	Nov. 25, 1919	
			Proc. 1493	Nov. 4, 1918	40 Stat. 1874.
Yorktown—Mine Depot; Fuel Oil Depot.	Virginia		Proc. 1472	Aug. 7, 1918	40 Stat. 1820.
			Proc. 1492	Nov. 2, 1918	40 Stat. 1868.
St. Thomas—Naval Station	Virgin Islands		E.O. 5602	Apr. 20, 1931	
			E.O. 7302	Feb. 21, 1936	
			E.O. 7686	Aug. 5, 1937	2 F.R. 1374.
			E.O. 7790	Jan. 12, 1938	3 F.R. 82.
			E.O. 8103	May 2, 1939	4 F.R. 1771.
			E.O. 8201	July 11, 1939	4 F.R. 2955.
			E.O. 8643	Jan. 21, 1941	6 F.R. 581.
			E.O. 8775	June 10, 1941	6 F.R. 2845.
Ediz Hook Spit—Reservation	Washington		E.O. 2646	June 17, 1917	
			E.O. 6504	Feb. 9, 1934	
			E.O. 8498	July 27, 1940	5 F. R. 2699.
Bremerton—Navy Yard	Washington		E.O. 3296	June 29, 1920	
			Proc. 1493	Nov. 4, 1918	40 Stat., 1874.
Harbor Rocks—Reservation	Washington		E.O. 8072	Mar. 21, 1939	4 F.R. 1291.
North Pacific Rock—Reservation	Washington		E.O. 8072	Mar. 21, 1939	4 F.R. 1291.
Casper—Petroleum Reserve	Wyoming		E.O.	Apr. 30, 1915	
			E.O. 5904	Aug. 18, 1932	
			E.O. 4614	Mar. 17, 1927	

JAMES FORRESTAL,
Acting Secretary of the Navy.

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TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Subchapter 2—Withdrawals, Restorations, Classifications and Executive Orders

PART 298—PUBLIC LAND ORDERS

[Public Land Order 168]

WITHDRAWAL OF PUBLIC LAND IN NEVADA FOR USE OF THE WAR DEPARTMENT FOR AIRPORT PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and to section 1 of the act of June 28, 1934, as amended, 48 Stat. 1269 (U.S.C., title 43, sec. 315), *It is ordered*, As follows:

Subject to valid existing rights, the following-described public land is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for airport purposes:

MOUNT DIABLO MERIDIAN

T. 16 S., R. 56 E., sec. 8, lot 1.
The area described contains 37.40 acres.

This order shall take precedence over, but shall not rescind or revoke, (1) the withdrawal for wildlife and other purposes made by Executive Order No. 7373 of May 20, 1936, and (2) the order of November 3, 1936, of the Secretary of the Interior, establishing Nevada Grazing District No. 5, so far as such orders affect the above-described land.

This order is subject to the following conditions:

1. The land described herein shall be used by the War Department only in connection with an auxiliary landing field, and shall not be used for bombing, machine gunnery, aerial gunnery, or any other type of gunnery.

2. Upon the termination of the use of the land for military purposes, the Fish and Wildlife Service, Department of the Interior, in connection with the operation of the Desert Game Range, shall have the option of acquiring any buildings, structures, equipment, or other improvements placed by the War Department on the area, under a mutually satisfactory agreement to be made at that time.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, the jurisdiction over the land hereby reserved shall be vested in the Department of the Interior, and any other Depart-